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Strengthening democracy through participatory and deliberative processes

Report¹

Committee on Political Affairs and Democracy

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Summary

Innovative practices are needed in order to counter and revert the backsliding of democracy in Europe. Participatory and deliberative democracy processes can contribute to rekindling citizens' trust in public authorities and strengthening their political engagement, including their participation in decision-making processes, in complementarity with representative institutions.

The Council of Europe is a pioneer in the development of standards related to participatory and deliberative democracy, and supports them at national, regional and local levels.

Member and observer States should further promote, design and adopt participatory and deliberative democracy processes at all levels, in accordance with the relevant standards. They should also ensure that the appropriate legislative framework and human, financial and technical resources are in place.

1. Reference to committee: [Doc. 15848](#), Reference 4774 of 28 November 2023.



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A. Draft resolution²

1. The Parliamentary Assembly believes that participatory and deliberative democracy processes can contribute to revitalising and strengthening democracy, by harnessing citizens' collective wisdom and giving them the capacity to directly influence decisions that affect their lives.
2. Democracy is intrinsically interdependent with human rights and the rule of law. It is thus the only political model compatible with the European Convention of Human Rights (ETS No. 5). Regrettably however, democracy is backsliding in Europe and worldwide. This erosion of democratic standards manifests itself in the weakening of the separation and balance of powers, with parliaments being sidelined and the independence of judiciary decreasing, to the advantage of a greater role for the executive. Civic space is shrinking due to restrictions to the freedoms of assembly and association, and freedom of media is declining.
3. Democratic backsliding, in turn, fuels the mistrust of citizens towards public authorities and their disillusion with traditional political parties, thus contributing to the downwards trends in electoral turnouts that are becoming a common feature among European countries, undermining the foundations of representative democracy. Against this background, political discourse has become populist, divisive and aggressive, paving the way for the rise of extremist parties, and in some instances leading to hate speech and physical violence. Malignant actors interfere with democratic processes to widen polarisation and provoke destabilisation.
4. At the same time, European societies are facing unprecedented challenges of global magnitude. Geopolitical rifts, frozen and armed conflicts, financial and economic shocks, widening inequalities, issues related to immigration and national identity, the environmental and climate crises, the digital revolution and the rise of artificial intelligence are all contributing to an increased and diffused sense of uncertainty among Europeans.
5. Innovative methods need to be explored in order to safeguard democracy and ensure that democratic backsliding is countered and reversed. Participatory and deliberative democracy processes can contribute to rekindling citizens' trust in public authorities and strengthening their political engagement, including their participation in decision-making processes, in complementarity with representative institutions. Citizens should be given an active role in the political debate, beyond and more frequently than in the context of elections, and all segments of society should be involved, including those who are all too often under-represented.
6. The Heads of State and Government of the Council of Europe have confirmed in their Reykjavik Declaration "United around our values" the resolve of member States to counter democratic backsliding, by adopting the Reykjavik Principles for Democracy and committing to delivering on them. The very first Principle indicates that member States will "actively enable and encourage democratic participation at national, regional and local levels through free and fair elections. As appropriate, forms of participatory democracy, including deliberative democracy, may be encouraged".
7. Different levels of citizens' engagement can be envisioned, from simple information sessions and consultations, to focus groups, participatory platforms, and ultimately the establishment of deliberative bodies, such as citizens' assemblies. These processes are not mutually exclusive, and can be adopted in combination with one another. They allow citizens to express their needs, submit their ideas and even co-participate in the decision- and policy-making process. Social media, artificial intelligence and digital tools, if used properly and transparently, can further boost the potential of participatory and deliberative democracy.
8. The Assembly has already called for the adoption of participatory and deliberative democracy processes by Council of Europe member States, through [Resolution 1746 \(2010\)](#) "Democracy in Europe: crisis and perspectives", [Resolution 2397 \(2021\)](#) and [Recommendation 2212 \(2021\)](#) "More participatory democracy to tackle climate change", and [Resolution 2437 \(2022\)](#) "Safeguarding and promoting genuine democracy in Europe", and it reiterates the considerations and recommendations contained therein.
9. Furthermore, the Assembly recalls that the Council of Europe is actively contributing to the development of standards related to participatory and deliberative democracy, and to their promotion through technical co-operation activities at national, regional and local levels. In particular, the Committee of Ministers adopted Recommendation CM/Rec(2023)6 on deliberative democracy, the first international standard in this

2. Draft resolution adopted unanimously by the committee on 30 May 2024.

field, which invites member States to consider deliberative processes and suggests the principles of deliberative democracy that should be applied when implementing them. Welcoming these efforts, the Assembly calls on member and observer States of the Council of Europe to:

9.1. adopt participatory and deliberative democracy processes at national, regional and local levels, in accordance with Recommendation CM/Rec(2023)6 and ensuring the respect of the following principles in their design and implementation:

- 9.1.1. “availability of a legal framework;
- 9.1.2. clarity of mandate and design;
- 9.1.3. fair representation;
- 9.1.4. enabled and informed participation;
- 9.1.5. competent facilitation;
- 9.1.6. accountability;
- 9.1.7. oversight and good governance;
- 9.1.8. evaluation and learning”;

9.2. participate actively in the work of the Steering Committee on Democracy, including for what concerns the development of parameters to facilitate the application and implementation of the Reykjavik Principles for Democracy, and the drafting of an implementation review report on Recommendation CM/Rec(2023)6 and/or a handbook collecting best practices;

9.3. take advantage of the expertise of the Council of Europe in the area of the relevant technical co-operation for the practical implementation of participatory and deliberative democracy processes, stepping up with financial resources if needed.

10. In addition, the Assembly invites the member and observer States of the Council of Europe as well as States whose parliaments enjoy observer or partner for democracy status or hold another status with the Assembly to consider the following measures:

10.1. promote the use of participatory and deliberative democracy processes at all levels by creating an enabling environment, in particular by ensuring that adequate financial and human resources are available and sufficient time is foreseen for their proper design, implementation, follow-up and evaluation;

10.2. encourage the experimentation of innovative participatory and deliberative methodologies within the relevant legislation, regulations, and budget allocations, including the necessary mechanisms for monitoring, evaluation and elaboration of lessons learned;

10.3. ensure that social media, digital platforms and artificial intelligence tools to facilitate participatory and deliberative democracy processes are employed in a manner that is respectful of the principles of human rights, democracy and the rule of law, is inclusive, transparent and safe from unwanted interferences and cyberattacks, and is not manipulated through algorithms or biased by mis- and dis-information that could affect the final results, also taking into account the provisions contained in the Council of Europe Framework Convention on artificial intelligence and human rights, democracy, and the rule of law;

10.4. foresee the establishment of permanent multilevel schools on participatory democracy, inspired by the ones already created by the Council of Europe, to ensure that civil servants and facilitators involved in participatory and deliberative democracy processes can access specialised training opportunities and are provided with a platform for the exchange of best practices and lessons learned;

10.5. ensure that the opinions or recommendations produced through participatory and deliberative democracy processes are duly taken into account by the decision makers, that they are openly debated, and that clear explanations are provided in case they are not followed;

10.6. institutionalise participatory and deliberative democracy processes at all levels, adopting the necessary legislation or regulations and allocating the appropriate financial and human resources, in order to create permanent and fully legitimate citizens' bodies that can operate side by side with executive and legislative ones;

10.7. explore the possibility of collaborating at a transnational level in order to pilot and implement multi-country or cross-border participatory and deliberative democracy exercises.

11. Citizens should be properly equipped and prepared to be actively engaged through participatory and deliberative democracy processes. The Assembly therefore invites member and observer States to design and include elements of education for democratic citizenship and human rights education in the curricula for formal education at pre-primary, primary and secondary school levels, as well as in general and vocational education and higher education institutions, to ensure that all Europeans are aware of their rights and duties as citizens, and to strengthen participatory culture among them, in line with the provisions of the Council of Europe Charter on Education for Democratic Citizenship and Human Rights Education and following the guidance of the Reference Framework of Competences for Democratic Culture.

B. Explanatory memorandum by Mr George Papandreou, rapporteur

1. Introduction

1. The word “politics” derives from the ancient Greek term “*polites*” meaning “citizens”. Aristotle believed that humans are inherently political beings due to their ability to speak, engage in moral reasoning, and govern themselves by creating laws and political institutions. Consequently, politics should be seen as a means to ensure citizens’ participation in public life. This participation harnesses their collective imagination for envisioning better futures and their collective wisdom for crafting and executing policies. Citizenship is fundamentally tied to the essence of democracy, where all citizens are granted equal voice and are actively involved in the decision-making process.

2. The major modern time philosopher on the Theory of Justice, John Rawls, theorised the “principle of participation”, requiring that all citizens are given an equal right to take part in and determine the outcome of the constitutional process that establishes the laws which they are to comply with. In his view, participation and democracy are a requirement of justice.

3. Our democratic systems today are intrinsically linked with the respect for human rights and the rule of law, thus providing individuals with the highest degree of protection, especially when compared with other political systems. Despite this, signs of political fatigue have been observed in most democratic countries during the past years, as we are facing several unprecedented challenges on a global level: geopolitical tensions and conflicts, economic and financial crises, rapid technological transformations, climate and energy crises, global pandemics and increasing inequalities, just to name a few.

4. These are difficult challenges for effective governance all around the world. In our democracies, however, the impact of these crises on citizens is often expressed as alienation from politics and fatigue through lower turnout rates during elections, decreased trust in public authorities, and the rise of extremist and populist parties, accompanied by an exponential increase of misinformation, disinformation and fake news. All these aspects contribute to the backsliding of democracy and scepticism towards democratic institutions around the world.

5. We need a wider range of participatory and deliberative tools now more than ever, to counter citizens’ alienation from politics and the backsliding of traditional representative democracies. This is not obvious, and requires an effort from both public authorities and civil society. In several countries, governments tend not to fully trust their citizens’ knowledge or ability to make important decisions, and therefore prefer not to engage them. As a result, citizens feel ignored, disenchanted, not listened to, and lose interest in participating. This vicious cycle must be broken. This report aims to show that effective participatory and deliberative processes can rebuild trust in democracy and lead policy makers to take better, more inclusive, and well-informed decisions, resulting in optimal solutions to current challenging problems.

6. In the past, I have advocated in favour of the creation of a 4th branch of government, which should be composed of deliberating citizens and would complement the legislative, judicial and executive branches.³ I have also had the possibility to discuss this matter, during a dedicated forum talk held in November 2023 in the framework of the World Forum for Democracy organised by the Council of Europe.⁴

7. This report provides an overview of participatory and deliberative democracy philosophy and tools, their influence on modern governance, and pathways for their effective implementation.

2. The challenges to representative democracy

8. Historically, European democratic systems have been founded on the principle of representative democracy: when they exercise their right to vote by casting a ballot, citizens transfer power to their elected representatives, who in turn define legislation and implement policies on their behalf. By electing their representatives at local, regional, national or transnational levels, citizens play an active role in the political life of the member States of the Council of Europe and the European Union. Conducting fair and transparent elections is therefore considered one of the main pillars of a strong democracy.

3. George Papandreou, “We Need a Fourth Branch of Government”, *New York Times*, 8 October 2019.

4. www.coe.int/en/web/world-forum-democracy/forum-talk-12-the-4th-branch-of-government.

9. This principle is enshrined in Article 21 of the Universal Declaration of Human Rights (1948), which clearly states that:

- everyone has the right to take part in the government of their country, directly or through freely chosen representatives;
- everyone has the right of equal access to public service in their country;
- the will of the people shall be the basis of the authority of government; this will shall be expressed in periodic and genuine elections which shall be by universal and equal suffrage and shall be held by secret vote or by equivalent free voting procedures.⁵

10. The [Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms](#) (ETS No. 9) of 1952 also introduced in the most important instrument of the Council of Europe the right to “free elections at reasonable intervals by secret ballot, under conditions which will ensure the free expression of the opinion of the people in the choice of the legislature”.

11. Moreover, the [International Covenant on Civil and Political Rights](#) (ICCPR), which entered into force in 1976, stipulates in article 25 that every citizen shall have the right and the opportunity, without any of the distinctions mentioned in article 2 and without unreasonable restrictions, to take part in the conduct of public affairs, to vote and be elected, and to have access, on general terms of equality, to public service in their country.

12. Globally, however, according to the “Democracy Report 2023: Defiance in the Face of Autocratization” by the Varieties of Democracy Foundation (V-Dem),⁶ there has been a significant regression in global democracy. The average level of democracy experienced by citizens globally in 2022 regressed to levels last seen in 1986, effectively wiping out advances made over the last 35 years.

13. The report also notes that 72% of the world's population, or about 5.7 billion people, lived in autocracies as of 2022. This is a considerable increase from 46% a decade ago. For the first time in more than two decades, there are more closed autocracies than liberal democracies globally. The report also highlights the deterioration of freedom of expression, media censorship, repression of civil society organisations, and the quality of elections in many countries.

14. The report finds that the number of countries experiencing democratisation has decreased to 14, the lowest since 1973, encompassing only about 2% of the world's population. In contrast, a record number of 42 countries are undergoing autocratisation, affecting 43% of the global population. This is an increase from the 33 countries and 36% of the population recorded for the previous year.

15. Europe stands as a beacon of democracy globally, yet it is confronted with significant democratic challenges. Recent years have seen a worrying trend of declining voter turnout in many European countries. The Secretary General of the Council of Europe highlighted in her 2023 report on the state of democracy, human rights, and the rule of law that the average turnout in parliamentary elections across Europe is alarmingly low. By the end of 2020, 13 member States held parliamentary elections with less than 50% voter participation.⁷

16. The report also emphasises that merely voting every four or five years is insufficient for citizens to significantly influence decisions made on their behalf. Additionally, Europe is grappling with a multitude of unprecedented regional and global challenges:

- the global financial, banking, and debt crisis, leading to economic downturns, increased inequalities, and weakened welfare systems. This has caused public dissatisfaction and diminished trust in governments and European institutions;
- the dim outlook for younger generations' future, despite humanity's immense wealth and technological prowess, has sparked frustration and anger;
- issues related to immigration, refugees, national identity, and Europe's role have become contentious and divisive;

5. [Universal Declaration of Human Rights](#).

6. <https://v-dem.net/publications/democracy-reports/>.

7. [State of democracy, human rights and the rule of law – Report of the Secretary General of the Council of Europe 2023](#).

- the rise of social media and artificial intelligence in politics has contributed to the creation of echo chambers and the spread of false or misleading information. The recent pandemic has highlighted how quickly misinformation can spread online, often exacerbating public confusion and mistrust in conventional media and science-based solutions;
- the war of aggression against Ukraine has seen an increase in targeted disinformation campaigns, often linked to external actors like the Russian Federation, aimed at influencing public opinion and undermining democratic processes;
- globalisation, while reducing poverty in some regions, has also intensified inequalities. This is further complicated as global market forces are increasingly determining individual incomes, but political decision making still largely occurs at the nation-state level. This has also led to a concentrated accumulation of wealth and power, which has adversely affected politics, often through lobbying and corruption, thereby weakening the rule of law and undermining democratic institutions.

17. These issues, along with the crisis in multilateralism, geopolitical conflicts, rising concerns over artificial intelligence, and environmental and climate crises, have all contributed to a widespread feeling of vulnerability, injustice, and powerlessness among citizens.

18. While it is evident that our political systems face unprecedented and complex challenges, the solutions are not always straightforward. This complexity often leads to frustration, driving some to favour “decisionism” – where a sovereign or ruler makes decisions outside the constraints of law to “maintain authority and protect the State”, particularly in emergencies and crises. However, this approach is often used to justify authoritarian or dictatorial rule, where the sovereign’s decisions override the rule of law. The appeal of authoritarian practices and persons, often seen as decisive problem solvers or heaven-sent saviours, is misleading. Such regimes might provide short-term solutions but ultimately leave societies more divided and ill-equipped to handle the ongoing challenges of more profound transitions.

19. Authoritarianism creates an illusion of efficiency but fails to deliver sustainable, inclusive solutions, exacerbating existing socio-economic problems and reducing a society’s capacity for dialogue and consensus. In essence, while decisionism may appear effective in the short term, it undermines democratic institutions and the rule of law, leading to long-term instability and deeper societal issues. Moreover, the lack of substantial checks and balances and deliberation easily leads to wrong decisions which can be disastrous. More often than not, existing socio-economic problems deepen as polarisation sets in and the capacity of a society to discuss and find consensus around issues is limited if not lost.

20. The greatest risk lies in replacing our trust in democratic values and institutions with trust in so-called strong personalities. This shift inevitably leads to democratic backsliding, the erosion of human rights, the substitution of the rule of law with the rule of the powerful and increased political polarisation within and between societies. Fatalism, rejection of politics and even violence replace constructive, democratic and inclusive problem solving.

3. Participatory and deliberative democracy

21. If authoritarianism is to be rejected we also need to reject what Roberto Unger⁸ coined as the “dictatorship of no alternatives”, a passive acceptance of “the way things are”. The focus should be on creative methods that strengthen democratic processes and find inclusive, sustainable solutions to complex political challenges. Innovative democratic methods can help reverse the backsliding of democracy and contribute to restoring trust and accountability for our citizenry.

22. The core principle of participatory and deliberative democracy is that citizens’ participation is essential in political life and at every level of government. Simply voting in elections is not sufficient.

23. What is really needed is more democracy, bringing citizens upfront and giving them a stronger voice and role in the decision-making process. Increased and active citizens’ participation can contribute to reducing concentration and abuse of power, and to minimising conflicts by settling differences through the peaceful means of deliberation and dialogue, which are an essential attribute of democratic ideals and practice.

24. Tapping into the collective wisdom of our citizens can become both a more inclusive, just and democratic project as well as a much more effective way to deal with complex and unprecedented challenges.

8. <https://americanaffairsjournal.org/2024/02/overthrowing-the-dictatorship-of-no-alternatives/>.

25. Participative and deliberative democracy practices ensure the direct engagement of citizens in politics. By addressing complex policy issues, these practices can enhance the quality of democratic decisions by incorporating diverse viewpoints, countering polarisation and oversimplification in public discourse. Active engagement at all levels of government, through avenues such as public consultations, community involvement, and civic education, ensures that diverse perspectives are considered in decision-making processes. At the same time, these practices underline the need for educated debate in decision-making.
26. In today's demand for governmental transparency and accountability, this model strengthens public-policy maker connections and empowers citizens to influence decisions impacting their lives.
27. The adoption of these processes, as complements to representative democracy, can contribute to generating decisions and policies that are owned, fair and legitimate, ultimately leading to the restoration of trust in the political system.
28. These processes represent not just a tool for solving specific problems, but a shift towards a more participatory and deliberative ethos in governance, which is crucial for the health and sustainability of democracies in the 21st century.
29. The rise of digital platforms and social media, in turn, has made participative democracy more viable. These new tools allow remote participation, facilitate the organisation of debates and voting, and provide access to diverse sources of information. At the same time, they also raise questions related to the possible manipulation of results by the entities controlling the platforms, for example through specific algorithms or the recent transformative application of artificial intelligence.
30. The Council of Europe acknowledges that there are different layers and related methodologies of participatory and deliberative democracy, which complement representative democracy.
31. The very first level is the provision of information, through which public authorities ensure that citizens are properly informed during the different stages of decision making, for example by means of media campaigns or information sessions.
32. Public authorities can then decide to further engage their citizens through consultations and dialogue, which allow the collection of citizens' views, information about their needs, and feedback about ongoing and prospective policies. This can be done through written consultations (for example polls, questionnaires and surveys), or *ad hoc* restricted meetings, such as advisory groups.
33. Further innovative practices have or are being developed tapping into the collective knowledge⁹ of citizens, such as through participatory research¹⁰ or action research.¹¹ These concepts do not see citizens as passive beings simply to be informed or to be consulted about their problems, but see them as an invaluable resource of collective knowledge which contributes towards collective problem solving. Citizens' assemblies are of course of such a nature.
34. The recently developed practice of "citizen science" exemplifies the importance and the wide application of the concept of collective wisdom. "Many scientists have seen the value in this collective problem-solving and have employed game design theories into their research. Our curiosity is what makes us human. It's our superpower".¹² Citizen science can sometimes not only enhance but even better advance conventional research practices. Projects such as "Foldit" have developed collaborative participation contributing to "one of the biggest discoveries [which] was the solution to a protein related to an AIDS-like virus that could prove groundbreaking for future medical research".¹³
35. Citizen science however has also contributed to collective wisdom in dealing with social-political problems, from environmental justice and health equity to community accountability. In particular, citizen science projects have contributed to solving social justice issues by engaging the public in scientific research

9. <https://nimbusweb.me/blog/why-collective-knowledge-matters/>.

10. <https://aph-qualityhandbook.org/set-up-conduct/study-preparation/participatory-research/general/what-is-participatory-research/>.

11. www.sciencedirect.com/topics/social-sciences/action-research.

12. Yoon, Songye. "Push Play: Gaming For a Better World" (p. 43), Forbes Books.

13. Ibidem (p. 46).

that directly impacts their communities, empowering citizens with knowledge and data to advocate for change, and by influencing policy and decision-making processes. Here are some ways in which citizen science has been leveraged to address social justice concerns:¹⁴

- environmental justice: citizen science projects have been instrumental in documenting environmental injustices, such as the unequal distribution of environmental hazards and amenities across communities;¹⁵
- health equity: citizen science initiatives have also been used to promote health equity, especially in areas of environmental contaminant exposures and physical activity. For instance, studies have involved citizen scientists in collecting data on arsenic levels in soil and using the findings to advocate for policy changes;¹⁶
- inclusive research and empowerment: projects that aim to de-complexify citizen science and engage with civil society actors or social movements can improve inclusion and epistemic justice. By aligning research objectives with community priorities, citizen science can empower marginalised groups and ensure that their voices and concerns are heard and addressed in scientific research and policy making;¹⁷
- education and learning: citizen science can function as a mean of engaging the public with science on the scale of individual experiments, creating a unique space combining participation, monitoring, and social change;¹⁸
- advocacy and activism: citizen science projects can play a role in activism and advocacy, representing socio-political goals by providing citizens with data and knowledge to advocate for changes in policy and practice that address social justice issues;¹⁹
- community monitoring and accountability: projects like the Movement for Change and Social Justice in South Africa used health information to inform and mobilise the community, demonstrating how citizen science can keep health systems accountable and improve access to services;²⁰
- data sovereignty and method development: in contexts where political situations compromise basic human rights and participants safety, citizen science projects can contribute to community recognition, empowerment, and environmental awareness by securing data sovereignty and developing locally adapted methods.²¹

36. These examples show that citizen science projects can be powerful tools for social justice when they are designed to be inclusive, address community concerns, and empower citizens with the knowledge and data necessary to effect change.²²

37. The above examples also highlight a wider and very important principle concerning citizen participation: citizens do have the capacity to understand policies and make wise decisions, and they can do so based on scientific fact and reasonable arguments. Furthermore, citizens want to participate and have their voice heard and respected. Collective wisdom can become a major democratic tool for good policy making if these processes are well-structured. By means of co-creation and “partnerships” between public authorities and their citizens, it is then possible to establish more sustained forms of participatory democracy, such as networking activities, focus groups, participatory budgeting or the establishment of citizens’ committees.²³

38. Pioneering work on structured deliberation has been done by Professor James Fishkin, who has practiced deliberative polling. Deliberative polling has been found to have a “depolarising” effect on participants from opposing parties, while providing a forum for meaningful public engagement on important issues, educating and empowering citizens.²⁴

14. L. Herzog and R. Lepenies, “Citizen Science in Deliberative Systems: Participation, Epistemic Injustice, and Civic Empowerment”, *Minerva* 60, 489–508 (2022).

15. L. Ceccaroni, et al., “Citizen Science, Health, and Environmental Justice”, in: Vohland, K., et al. *The Science of Citizen Science*. Springer, 2021.

16. L. G. Rosas, P. Rodriguez Espinosa, F. Montes Jimenez, A. C. King, “The Role of Citizen Science in Promoting Health Equity”, *Annu. Rev. Public Health*, 2022.

17. <https://case.hks.harvard.edu/race-and-social-justice-case-collection/>.

18. www.frontiersin.org/articles/10.3389/fsoc.2020.613814/full.

19. <https://journals.plos.org/globalpublichealth/article?id=10.1371%2Fjournal.pgph.0000664>.

20. *Ibidem*.

21. <https://theoryandpractice.citizenscienceassociation.org/articles/10.5334/cstp.514>.

22. <https://journals.sagepub.com/doi/full/10.1177/00027162221092697>.

23. Centre of Expertise for Good Governance, “Civil Participation in Decision-Making Toolkit”, April 2020.

39. Deliberative democracy, as a form of participatory democracy, sits at the end of this spectrum: through more structured forms of deliberation, which can be facilitated and accompanied by experts, citizens directly propose policies or take informed decisions.²⁵

40. These different processes are not exclusive and can be adopted both consecutively and in parallel. There is no set solution that can fit all situations: different methodologies should be adopted and adapted according to the specific time and context.

41. What matters is that the process is based on principles such as transparency, clarity, openness, accountability and inclusivity, and shared and agreed to among the public authorities, citizens and civil society.

4. The work of the Council of Europe

42. The Council of Europe has been a pioneer in developing and strengthening participatory and deliberative democracy processes in its member States through its different bodies and instruments. The basic principles can be found, in particular, in the Convention for the Protection of Human Rights and Fundamental Freedoms (ETS No. 5) and its additional protocols, and in the Additional Protocol to the European Charter of Local Self-Government on the right to participate in the affairs of a local authority (CETS No. 207).

43. Already in 2010, the Parliamentary Assembly with [Resolution 1746 \(2010\)](#) “Democracy in Europe: crisis and perspectives” recognised that direct democratic elements had to be included in the decision-making process, and called on Council of Europe member States to establish participatory and deliberative processes and structures, and to improve citizenship education and political training.

44. Following up, the Assembly adopted [Recommendation 2212 \(2021\)](#) “More participatory democracy to tackle climate change”, for which I was rapporteur. The text recommended the Committee of Ministers to “encourage its competent steering committee to draw up a report on new forms of participatory democracy, with a view to sharing good practices among member States”, and invited member States to “promote effective means of enhancing citizens’ competences for democratic culture”.

45. With [Resolution 2437 \(2022\)](#) “Safeguarding and promoting genuine democracy in Europe”, the Assembly invited again member States to “involve citizens, especially young people, in political decision making, including through consultation and other inclusive forms of participation and deliberation.”

46. Taking a similar stance, the Congress of Local and Regional Authorities of the Council of Europe adopted Resolution 480 (2022) and Recommendation 472 (2022) “Beyond elections: the use of deliberative methods in European municipalities and regions”,²⁶ which called on member States to consider implementing deliberative methods at local and/or regional levels.

47. The Committee of Ministers also adopted several relevant texts in the past years, including in 2017 the Guidelines for civil participation in political decision making²⁷ and subsequently Recommendation CM/Rec(2018)4 on the participation of citizens in local public life.²⁸

48. Finally, the Conference of international non-governmental organisations (INGOs) of the Council of Europe adopted in 2019 the Revised Code of Good Practice for Civil Participation in the Decision-Making Process.²⁹

49. Based on all the above, the Heads of State and Government of the Council of Europe, during their 4th Summit held in May 2023, took a decisive position with the Reykjavik Principles for Democracy, declaring that member States would “actively enable and encourage democratic participation at national, regional and local levels through free and fair elections. As appropriate, forms of participatory democracy, including deliberative democracy, may be encouraged”.³⁰

24. <https://deliberation.stanford.edu/what-deliberative-pollingr>.

25. European Committee on Democracy and Governance, “[Report on Deliberative Democracy](#)”, 31 January 2023.

26. “[Beyond elections: The use of deliberative methods in European municipalities and regions](#)”.

27. [Guidelines for civil participation in political decision making](#), CM(2017)83-final, adopted by the Committee of Ministers on 27 September 2017.

28. [Recommendation CM/Rec\(2018\)4 of the Committee of Ministers to member States on the participation of citizens in local public life](#).

29. <https://rm.coe.int/code-of-good-practice-civil-participation-revised-301019-en/168098b0e2>.

30. Council of Europe, “[United Around our Values – Reykjavik declaration](#)”, 16-17 May 2023.

50. Later, the Committee of Ministers adopted Recommendation CM/Rec(2023)6 on deliberative democracy, which explicitly states that the “participation of all citizens is at the very heart of democracy, that citizens who are committed to democratic values, mindful of their civic duties and active in public life are the lifeblood of any democratic system, and that dialogue between citizens and decision makers is essential for democracy, as it strengthens trust, the legitimacy of democratic institutions and the effectiveness of their actions”.

51. The recommendation invites member States to consider deliberative processes and suggests the principles of deliberative democracy that should be applied when implementing them:³¹

- availability of a legal framework: deliberative processes should be in line with the overall regulatory framework and international obligations; the enabling legislation or regulation should clearly define the scope and requirements of the process;
- clarity of mandate and design: taking into account the topic under discussion, the mandate should be clearly defined, including a timetable, responsibilities, resources and follow-up of the results; the scope should be manageable and achievable;
- fair representation: the recruitment process should be managed by an independent entity and should be transparent, inclusive, accountable and independently auditable; random selection techniques should be adopted, reaching out, when necessary, to the socio-demographic groups affected – with a balanced participation of women and men and ensuring accessibility and inclusivity (namely by reimbursing the costs of participation);
- enabled and informed participation: participants should be able to request and receive any information, which should be verifiable, diverse, accessible and understandable; they should have sufficient time to reflect on the subject and ask for additional explanations if needed, and should have the freedom to provide the response they want without external guidance or suggestion as to what it might be; preparatory training and continuous learning opportunities should be envisioned throughout the process;
- competent facilitation: experienced facilitators should ensure that the process runs smoothly, allowing space for debate and disagreement and giving participants the possibility to reach their own conclusions and develop their own responses, free of interference;
- accountability: The relationship between the deliberative process and the overall decision-making process should be clearly defined and managed; there should be an agreed and transparent mechanism on how recommendations will be delivered by the deliberative process and followed up by policy makers, who should in turn explain their choices to the public; safeguards against undue influence should be put in place, as well as a public engagement plan to promote the process and the results, and consideration should be given to how participants will interact with the wider public;
- oversight and good governance: an open and transparent governance mechanism, including an independent oversight, should be in place to ensure the legitimacy of the process, ensuring that proper resources are available and appropriate training on deliberation skills prior and/or during the process is provided;
- evaluation and learning: the design of the process should include an evaluation component, through self-assessment procedures or by an independent entity; findings of the evaluation should be public and feed a wider cycle of reflection within the public sector body, providing room for improvement and learning.

This recommendation is a ground breaker, as it represents the first international standard in this field.³²

52. Last but not least, it is worth to mention that the European Commission for Democracy through Law (Venice Commission) noted in a recent report how participatory democracy could be enhanced by bicameralism. In particular, a second chamber could “provide an inclusive forum that offers enhanced representation to diverse groups of society whose voice is hard to be heard, e.g., women, refugees, migrants, people with disabilities, ethnic or linguistic minorities”.³³

31. https://search.coe.int/cm/pages/result_details.aspx?objectid=0900001680ac627a.

32. “Deliberative Democracy: First International Standard Adopted by the Council of Europe!”, 6 September 2023.

33. European Commission for Democracy through Law, “Report on Bicameralism”, 18 March 2024.

5. The work of the Organisation for Economic Co-operation and Development (OECD)

53. The OECD is also working extensively on the matter of citizen participation, and its report “Innovative Citizen Participation and New Democratic Institutions: Catching the Deliberative Wave” provides a useful and thorough description of the main features of a deliberative process.³⁴

54. The OECD defines a representative deliberative process as one in which “a broadly representative body of people weighs evidence, deliberates to find common ground, and develops detailed recommendations on a policy issue for a public authority”.³⁵

55. More in detail, representative deliberative processes are launched when faced with a public problem that needs to be solved. The commissioning public authority normally carries out a civil lottery to identify a small, representative group of people. This group will first learn about the details and different perspectives related to the problem, hearing from experts and stakeholders; the collected evidence will then be assessed with the help of facilitators, in order to find a common ground and ultimately draft recommendations to address the problem. At the end of the process, the public authority considers whether to adopt the recommendations and transform them into policy or legislation, providing a rationale for the decisions taken in each case.³⁶

56. It is also worth mentioning the Good Practice Principles for Deliberative Processes for Public Decision Making identified by the OECD.³⁷ These Principles crystallise the main features that deliberative processes should present, based on the evidence collected and analysed in the OECD report, and can provide guidance to policy makers when designing deliberative processes. The Principles are perfectly aligned with the principles of deliberative democracy adopted by the Committee of Ministers of the Council of Europe and mentioned above. They are described as follows:

- purpose: the objective should be clear, phrased neutrally and linked to a defined public problem;
- accountability: the commissioning public authority should commit to responding to or acting on the recommendations stemming from the process;
- transparency: the process should be announced publicly, and the process design, materials, funding sources as well as the response of the public authority should be publicised;
- inclusiveness: under-represented groups should be involved, and participation should be encouraged and supported whenever needed;
- representativeness: the selected participants should represent a microcosm of the general public, by random sampling the population based on stratification by demographics and in some instances by attitudinal criteria. The selection procedure must ensure that everyone has an equal opportunity to be selected;
- information: participants should have access to a wide range of accurate and diverse evidence and expertise on the matter being tackled, and they should be able to involve and choose speakers and experts themselves;
- group deliberation: participants should be enabled to find a common ground in order to develop their collective recommendations to the public authority, including by means of facilitators;
- time: participants should be given adequate time to learn, weigh the evidence and develop informed recommendations;
- integrity: the whole process should be managed by a co-ordinating team different from the commissioning public authority;
- privacy: in order to ensure participants’ independence and preserve them from the influence of external lobbies or interest groups, their privacy should be respected, and their identity should not be publicised during the process;
- evaluation: the process should be anonymously evaluated by participants, as well as through internal or independent evaluations, in order to assess how to improve future practice and identify the impact of the recommendations on policies.

34. OECD, “Innovative Citizen Participation and New Democratic Institutions: Catching the Deliberative Wave” – Highlights 2020.

35. OECD, “Deliberative Democracy Toolbox”.

36. Ibidem.

37. “Innovative Citizen Participation and New Democratic Institutions: Catching the Deliberative Wave”, op. cit.

6. Good practices and the potential of participatory and deliberative democracy

57. There are already several good practices of participatory and deliberative democracy mechanisms stemming from various Council of Europe member States, which can be taken into consideration for their implementation in other countries. The report on “Mapping Deliberative Democracy in Council of Europe Member States”,³⁸ prepared by the Council of Europe in 2022, provides an excellent starting point for useful references and analyses of practical examples. Most importantly, it includes a series of recommendations and a useful Checklist for good practice in deliberative initiatives, which stem from the best practices collected in the report and can provide policy makers with useful guidance when designing for the first time a deliberative process.

58. In my previous report entitled “More participatory democracy to tackle climate change”,³⁹ I already analysed and described a series of different deliberative processes, with a particular focus on the issue of climate change: the Ireland Citizens’ Assembly, the Poitou-Charentes Citizens’ Jury, the French Convention Citoyenne pour le Climat, and the Climate Assembly United Kingdom.

59. Similarly, the report accompanying Resolution 480 (2022) of the Congress of Local and Regional Authorities (mentioned above) also provided a thorough description of four different case studies at local and regional level. These included the Fresh Water Future Forum of the municipality of Oud-Heverlee in Belgium; the Citizen’s Assembly of Mostar in Bosnia and Herzegovina, directly supported by the Congress through one of its projects; the Scottish Climate Assembly in the United Kingdom; and the Citizen Council or “Ostbelgien Model” in the German-Speaking Community of Belgium.

60. The OECD compiled what is possibly the most comprehensive collection of cases: over 700 different examples from around the world are listed in their database,⁴⁰ most of them feeding into the analysis contained in their flagship report on “Catching the Deliberative Wave”.

6.1. At local level

61. In the last decades, participatory and deliberative democracy processes have been successfully adopted at local level in a growing number of countries worldwide. Intuitively, these processes are easier to organise, manage and fund, given the reduced scope of their mandate and the smaller number of citizens involved. Furthermore, citizens tend to establish stronger ties with their local authorities, because these are the closest level of governance available, and therefore their commitment and engagement tend to be more intense. Overall, it can be said that there is already a wealth of successful experiences which policy makers can take inspiration from across the world.

62. One of the earliest and most prominent examples of participatory democracy is represented by participatory budgeting in Brazil, through which citizens directly decide how to allocate a portion of the municipal budget. Started in 1989 in the municipality of Porto Alegre, the process has been adopted by over 140 other municipalities in the country, leading to more equitable resource distribution and increased public participation, especially from lower-income communities. This successful practice has served for inspiration and been replicated in different manners and in different cities all over the world.

63. The Ostbelgien Model developed by the federal German-speaking Community of Belgium is also a particularly innovative mechanism, as it is the first one worldwide that institutionalised by law (in 2019) the adoption of deliberative processes alongside more traditional democratic institutions. Up to three Citizens’ Assemblies per year, composed by randomly selected citizens, deliberate on a specific policy issue and propose recommendations to the regional parliament. A permanent Citizen Council, composed of 24 members (randomly selected from those who have previously been part of a Citizens’ Assembly) selects topics for the Citizens’ Assemblies and monitors the implementation. The regional parliament is bound to organise specific public hearings and meetings in order to debate over the proposals presented.⁴¹

64. Other local authorities have followed the path of institutionalising participatory and deliberative mechanisms, and some major cases can be mentioned: in 2021, the municipality of Paris and the London Borough of Newham both established permanent citizens’ assemblies, and in 2022 other municipalities, such as Brussels and Milano did the same. All of them are composed of citizens selected by sortition.

38. <https://rm.coe.int/cddg-2022-3e-mappingdeliberativedemocracy-2-2-2765-5446-0166-v-1/1680a62671>.

39. Doc. 15351.

40. <https://airtable.com/appP4czQIAU1My2M3/shrX048tmQLi8yzdc/tblrttW98WGpdnX3Y/viwX5ZutDDGdDMEep>.

41. www.bertelsmann-stiftung.de/en/our-projects/democracy-and-participation-in-europe/shortcut-archive/shortcut-7-the-ostbelgien-model.

65. The Council of Europe largely supports the promotion and implementation of participatory and deliberative democracy processes at the local level, through the co-operation activities undertaken by its Directorate for Democracy as well as the Congress of Local and Regional Authorities.

66. As an example, since 2019, the Directorate for Democracy has supported public authorities with technical assistance to introduce participatory mechanisms in Ukraine. Currently the technical assistance is focused on the piloting of deliberative democracy methodologies to ensure that citizens' voices and concerns are heard in the recovery and reconstruction of the country, needed as a consequence of the full-scale war of aggression waged by the Russian Federation. Other successful technical co-operation activities include the support to introduce participatory and deliberative mechanisms in Albania, Czechia, Georgia, North Macedonia and Türkiye. Furthermore, a comprehensive competency building programme in the format of the Council of Europe Schools on Participatory Democracy was developed and implemented in a range of countries, providing specialised training to practitioners from public authorities and civil society organisations.

67. The Congress of Local and Regional Authorities has promoted the adoption of deliberative democracy methodologies in its report on the use of deliberative methods in European cities and regions mentioned above. The Congress report offers practical guidelines for municipalities and regions illustrated by case studies at the local and regional levels and highlighting key aspects for the successful implementation of deliberative methods. The Congress supported their practical implementation in Bosnia and Herzegovina during the last years, first in the city of Mostar, and now also in the city of Banja Luka. These experiences allowed citizens to take an active role in policy making. The Citizens Assemblies were composed of randomly selected citizens and covered topics such as the cleanliness of public space, touristic attractiveness and youth entrepreneurship. The main added value brought by these processes was to make the debate truly open with equal participation of people from diverse social and ethnic backgrounds, including those underrepresented in other participatory initiatives.

68. In addition to citizens' assemblies, which require the physical presence of participants, digital participation platforms can also represent a useful participatory tool. They allow for reaching, in a relatively easy way, a very large number of citizens within a community, and to engage them in multiple forms. This kind of tools is extensively used throughout Europe by large cities as well as small towns, also thanks to a flourishing market of private tech companies that provide different platforms, customisable according to the needs of the local clients.

69. The City Observatory of Madrid represented a particularly prominent example. It merged the use of a digital participation platform (*decide.madrid*), through which citizens could submit their proposals, with deliberative democracy, as the randomly selected members of the Observatory were then called to evaluate them. In 2020, the Observatory was reverted to its original function and composition, namely an oversight body where only elected officials and civil servants of the municipality sit.

70. In any case, the interesting aspect of digital participation platforms is that citizens can be consulted by the municipality in a conventional way on specific topics, but they can also be involved in participatory budgeting, or take a proactive role by launching debates or citizens' proposals. The main concern related to these platforms is that they are at risk of being manipulated through uncontrolled algorithms or cyber-attacks; in addition, as they are intrinsically dependent on the use of IT devices to allow interaction, they might exclude certain groups which do not have easy access to such devices or lack IT literacy.

71. In addition to the Council of Europe, a number of other organisations are also active in supporting participatory and deliberative democracy initiatives at the local level. Among these, it is worth mentioning the International Observatory on Participatory Democracy (IOPD), an international network part of the United Cities and Local Governments (UCLG), which gathers cities, organisations and research centers interested in learning about, exchanging and applying experiences of participatory democracy at the local level. It grants annually the "Best Practice in Citizen Participation" Award, recognising practices of participatory and deliberative democracy implemented by local and regional governments. Its website contains a large database of cases from all over the world.⁴²

72. The European Union, through its Competence Centre on Participatory and Deliberative Democracy, provides services, guidance and tools to support the development of socially robust policy through citizen engagement practices.

42. www.oidp.net/en/practices.php.

6.2. At national level

73. The interest for participatory and deliberative democracy is not limited, nor should it be, to the local level. In fact, the processes and the interest at national level have grown in the last years, and some encouraging experiences have been developed in certain countries, providing the opportunity to experiment and learn valuable lessons that could be replicated elsewhere. One needs only to mention a few examples to understand the necessity to further deepen the available set of knowledge, good practices and most effective ways to use deliberative and participatory processes in our democracies.

74. One of the first cases of deliberative democracy at national level was the Canadian experience of British Columbia (2003) and Ontario (2006), which randomly selected citizens in order to deliberate on a possible electoral reform in the two provinces. In both cases, the recommendations made by the citizens' assemblies were submitted to referenda and failed to get the final approval from the electorate. One of the main point of criticism voiced against these two experiences is the weakness of public awareness around their work. Notwithstanding the final result, they are considered as pioneering examples of engaging citizens in policy making.

75. Together with the Canadian cases, Citizens' Assemblies in Ireland are possibly the most quoted ones, as they have been involved in the decision-making process related to important legal and policy issues faced by Irish society in recent years. By bringing together 99 randomly selected members of the public, they have provided informed recommendations to the Irish Government and Parliament on complicated matters,⁴³ in some cases also leading to the adoption of constitutional amendments,⁴⁴ including the legalisation of same-sex marriage and abortion.

76. As per the principles already described, one of the added values of the Irish experience is that by randomly picking citizens through sortition – a practice which goes back to ancient Athens – the whole of society is represented within the group, guaranteeing a voice for those who normally would not have one, would be marginalised or would not participate as actively as others. This practice of creating citizen's assemblies enriches the conversation, allows for a constructive dialogue, and avoids deliberate polarisation, even on controversial issues. Furthermore, in this case it is more difficult for specific interests of concentrated power to influence the final result, as participants are not known in advance and have a limited mandate. Therefore they do not have vested interests to defend and can focus only on the general, public good.

77. In a similar fashion, the citizen's assemblies on climate in France and the United Kingdom mentioned above were organised following a standardised format, which included learning, deliberating and voting. In both cases, members were selected randomly and by stratified sampling. The UK Climate Assembly was a deliberative exercise to inform political chambers, with a predetermined set of topics to be analysed and a clear governance structure. The French Convention Citoyenne pour le Climat, on the other hand, was cast as a political chamber, allowing civil society to participate in the setting of the agenda, and participants to self-organise and self-regulate.

78. In both cases, citizens were able to produce recommendations on their preferences related to climate change policies. In the UK, due to the need to split the assembly into topic groups, the breadth of learning for many assembly members was reduced, and policy makers felt in turn less pressure to adopt recommendations coming only from a part of the assembly.⁴⁵ The French experience produced comprehensive proposals, however the broader public seemed to be sceptical about how the government would react to them. In addition, the citizens in the Assembly took the decision not to submit to a referendum a number of technical proposals, for a set of different reasons: some felt that the broader public would not be as prepared as they had become; others feared that the referendum would turn into a vote of approval for the President of the French Republic, thus ignoring the real topics at hand; certain citizens were also anxious about the campaigning commitment that would be required from them in case of a referendum. This seemed to be a missed chance: a referendum on the citizens' assembly proposals could have improved their legitimacy.⁴⁶

43. <https://citizensassembly.ie/about/>.

44. <https://oecd-opsi.org/innovations/the-irish-citizens-assembly/>.

45. www.mdpi.com/2071-1050/13/20/11272.

46. www.nature.com/articles/s41599-022-01212-6.

79. Following these examples, Spain also established a Citizens' Assembly for Climate in 2022, which made extensive use of IT tools and collaborative software to allow for the deliberations to happen mostly online. Citizens were randomly selected and then split among different groups. A final meeting was held in person in Madrid, during which the participants voted on the 172 recommendations that were ultimately presented to the Spanish Government for consideration.

80. Another interesting case is the one developed in Iceland after the financial crisis in 2008, when the country embarked on a process of rewriting its constitution. A constitutional Assembly composed of 25 elected members, broadly representative of the Icelandic population, was appointed by the Icelandic Parliament to draft a new constitution. This Assembly used social media and other platforms to solicit public input and feedback. The final draft constitution produced by the Assembly integrated many of the public's suggestions and opinions. It has to be noted, however, that while the process was considered innovative and inclusive, as it requested citizens to provide feedback which was then integrated in the final suggestions, it was also controversial, as the Supreme Court annulled the initial election of the members of the Constitutional Assembly, and the parliament subsequently resisted adopting the Assembly's proposals.

81. The Citizens' Assembly of Scotland, set up in 2019, foresaw the participation of over 100 randomly selected citizens to deliberate on the future of Scotland, also in light of the challenges arising from Brexit. It met 4 times online and 4 times in person and produced a set of recommendations. Among these, the participants proposed to make much larger use of citizens' assemblies and mini-assemblies, even at community level, to strengthen citizens' engagement. The most interesting proposal was to actually "set up a 'house of citizens' to scrutinise government proposals and give assent to parliamentary bills", with time-limited membership, and representative of the population of Scotland, composed in a similar way to the Citizens' Assembly.⁴⁷

82. While this proposal has not been adopted (for the time being), it is certainly a sign that citizens are absolutely willing and ready to step up their responsibilities. A permanent House of Citizens, structured like a second parliamentary chamber with the power of monitoring the work of the legislative and executive branches and contributing to decision making, would crystallise the concept of "fourth branch of government" that I have already extensively analysed elsewhere.

83. Citizens' juries or panels are yet other possibilities. They are also organised at national level, but focus on a more narrow subject, have a shorter lifespan and need fewer resources. Examples of this practice can be found in Belgium as well as in Finland, on a plethora of issues related to sustainable development.

84. As a Prime Minister of Greece, I introduced the so-called "wiki-law process", which entailed an online public consultation for each bill before it was passed to the parliament for vote. This enriched and improved the draft legislative texts with the collective knowledge of Greek society, including views and experiences of people from different backgrounds.

85. From this experience one could envision the creation of an "e-agora": an online public space for deliberation on all policy-related matters and legislation. This platform would provide all members of society with the possibility to participate, via internet and with their own voice, in the debates around policies affecting their lives. Artificial intelligence, through transparent algorithms – under public scrutiny – could be used to enhance the debate and analyse the areas of consensus, as well as to avoid attempts of manipulation and polarisation by means of bots and hate speech. Such an instrument would enhance dialogue and allow for tapping into collective knowledge to improve the decision-making processes, thus moving forward in identifying shared and sustainable solutions for the major challenges faced at local, regional and global levels.

86. The public service media and the European Broadcasting Union (EBU) should also play an important role in participatory and deliberative democracy, promoting participatory practices but also being open to citizens' needs and evaluation of media outlets. Several EBU members have already undertaken innovative initiatives concerning the participation and dialogue with citizens as part of their contribution to society actions. In Greece, ERT, the national broadcasting service, invited citizens to participate in a council whose role was to evaluate and provide input to the work of the organisation. The work of the Citizen's Audit Council that ran between 2015 and 2018 was showcased through a television program titled "Polites" (Citizens). The Council was made up of 55 citizens chosen by sortition and 55 stakeholders (civil society, universities, municipalities, churches, social partners). Through a dedicated website, the general assemblies were livestreamed leading to thousands of responses from the audience through email and telephone. Public service media of all countries of Council of Europe could – and should – become pillars of citizens' participation and citizens' experimentation.

47. <https://webarchive.nrscotland.gov.uk/20211201193424/https://www.citizensassembly.scot/>.

6.3. At transnational level

87. Participatory and deliberative democracy processes at transnational level are still not fully developed, and consist mostly of large consultations. The United Nations has undertaken this effort on different occasions. In particular, in 2020, the United Nations launched a worldwide global consultation to mark its 75th anniversary. Over 1 million persons participated, providing insights into their hopes and fears, and what they expected from the Organisation to tackle them. While the scope of these exercises is impressive, they obviously remain limited to gathering ideas that can indicate the overall direction for the United Nations' work, and have a very limited impact on the life of citizens.

88. Another interesting example is the European Citizens' Consultations, conducted in 2018, concerning the Future of Europe, aimed at involving citizens in EU decision making. While those involved, and in particular those chosen to participate in the Citizens' Consultations, were very positive about their experience, the process was criticised for low public awareness and participation and limited impact on policy making.

89. Along these lines, and building on the above experience, a new campaign has been launched by the European University Institute called "Democratic Odyssey". As presented by its representatives during the hearing with the Committee on Political Affairs and Democracy held on 5 March 2024, the initiative has gathered a network of different partners, which are currently working to develop a concept and strategy to institutionalise an effective and permanent peoples' assembly, a participatory eco-system within the European Union⁴⁸ and the Council of Europe. This institution would have a transnational character, and would therefore not be limited to local government or a member State.

6.4. The spirit of participation and deliberation

90. While today's participative practices are inspired by Ancient Athens, and thinkers such as Jean-Jacques Rousseau and John Stuart Mills, participatory and deliberative processes have actually been part of many different cultures including in pre-historic and aboriginal communities.

91. Several examples can be made of tribal councils, where leaders or elders would gather to discuss and make decisions on behalf of the community, rotating leadership to avoid concentration of power, or where decisions were often made through consensus, with input from all adult members and involving extended dialogue. Only some cases need to be mentioned, such as the Iroquois Confederacy, the Huron-Wendat or the Muscogee (Creek) Nation (North America), the Indigenous Australian Communities, the Kuna People (Panama), the Maasai Community (Kenya and Tanzania), or the Inuit Communities (Arctic Regions). This shows that the practice of participation and deliberation is more universal, not exclusive to Western tradition.⁴⁹

92. Further to what has previously been described in this report, there are many diverse forms of participatory and deliberative practices which have been developed and have been present in many of our societies such as:

- public forums, Town Hall meetings and community advisory boards;
- citizen diplomacy and Track Two Diplomacy in conflict situations;
- wider membership and citizen participation in internal political party leadership elections;
- employees' board representation in corporations, as well as worker-owned enterprises;
- cooperatives of producers, workers, consumers, etc.;
- investment clubs, where local groups engage in collective investment;
- advisory boards and councils for the inclusion of stakeholders within organisations, such as youth participation in governance, with the leading example of the Joint Council on Youth of the Council of Europe;
- judicial system participation: jury systems and mixed tribunals which include lay citizens in judicial processes, citizens checking on or electing judges, serving as jurors, and participating directly in the administration of justice;
- co-operative learning activities, an educational approach involving citizens in small groups to enhance learning through active participation;

48. <https://democraticodyssey.eui.eu/about>.

49. D. Graeber, D. Wengrow, "The Dawn of Everything: A New History of Humanity", Allen Lane, 2021.

- participatory mapping, where citizens engage in mapping projects to influence or contribute to topics such as urban planning and environmental conservation;
- participatory action research, where researchers and participants collaborate to understand and address problematic situations, focusing on social change and community involvement;
- hackathons, e-petitions, crowdfunding and crowdsourcing platforms;
- social media platforms used for political mobilisation and public opinion expression.

93. This list is not exhaustive; nevertheless, together with the different cases described above, it proves that there are many choices, many forms, many different institutions, which however have a common strand: the democratic spirit of citizen participation and deliberation.

6.5. The importance of education

94. In all the above initiatives an essential component is education. In order to be receptive and reactive to the possible mechanisms that might call them upon to participate actively in the political life of their communities or countries, going beyond traditional representative democracy, citizens will need to be educated on their democratic and human rights, and their civic sense of duty should be strengthened.

95. Most of our educational systems lack comprehensive modules and methods to teach democracy to younger generations. This should entail the capacity to engage in debates with respect, to deal with conflict and diversity, to work in teams, to know their rights and responsibilities, to understand the importance of voting and participation, and to fully own the basic premises of democracy. An aspect which needs to be part of teaching democracy, whether for younger students or adults, is to ensure that the pedagogy, the educational experience in itself is a practical example of democratic participation: students should be positioned as active “empowered actors” rather than passive recipients of knowledge, and learning should happen through dialogue, collaboration, inquiry and “by doing” rather than just through teachers transmitting content.⁵⁰

96. The Council of Europe Charter on Education for Democratic Citizenship and Human Rights Education provides the appropriate framework for this, and its implementation needs to be further promoted and strengthened.⁵¹ It provides member States with guidance on how to frame their relevant policies on education for democratic citizenship and on human rights, and in particular calls upon them to foresee their inclusion in the teaching curricula for formal education from pre-primary school level to higher education institutions.

7. Conclusions

97. The Council of Europe considers “representative democracy, based on the right of citizens to freely elect their representatives at reasonable intervals, as part of the common heritage of member States”. At the same time, it considers that “participation of citizens lies at the very heart of the idea of democracy”, and the “right to civil participation in political decision-making should be secured to individuals, non-governmental organisations (NGOs) and civil society at large”.⁵²

98. Under this view, participatory and deliberative democracy can complement representative democracy, providing citizens with a direct venue where their voices can be heard, including those of more marginalised groups. This in turn allows citizens to contribute to decision making on issues affecting their lives, thus reinforcing their bond with governments at all levels and ultimately strengthening democratic systems vis-à-vis the multidimensional challenges of the 21st century.

99. Building on the experiences mentioned above, a number of proposals as well as research have been conducted on the concept of a “fourth branch of deliberative government”. This concept was presented by Professor Byong-Jin Ahn⁵³ and myself⁵⁴ at the 2023 World Forum for Democracy of the Council of Europe in a workshop titled “The Fourth Branch of Government”.⁵⁵

50. See <https://files.eric.ed.gov/fulltext/EJ1188587.pdf>.

51. Recommendation CM/Rec(2010)7 of the Committee of Ministers to member states on the Council of Europe Charter on Education for Democratic Citizenship and Human Rights Education.

52. CM(2017)83-final, op. cit.

53. <https://youtu.be/tVSyUeDrc4Y>.

54. <https://thelivinglib.org/we-need-a-fourth-branch-of-government/>.

55. www.coe.int/en/web/world-forum-democracy/forum-talk-12-the-4th-branch-of-government.

100. The Council of Europe is already playing a pioneering role in developing participatory and deliberative processes and encouraging their implementation among its member States. In line with the Reykjavik Declaration adopted by its Heads of State and Government in May 2023, and in synergy with other organisations such as the OECD, it should continue to focus on this matter. Considering that innovative methodologies are currently being designed by different actors, and since there is potential for further evolution, their implementation should be monitored, supported and encouraged by Council of Europe bodies at different levels.

101. Of crucial importance in this respect will be the future work of the Steering Committee on Democracy (CDDem) set up by the Committee of Ministers. According to its terms of reference, the CDDem will elaborate parameters to facilitate the application and implementation of the Reykjavik Principles, and will prepare an implementation review report on Recommendation CM/Rec(2023)6 on deliberative democracy and/or a handbook collecting best practices.⁵⁶

102. The work of the CDDem, the Directorate for Democracy and the Congress of Local and Regional Authorities need to be supported, including for what concerns the promotion of participatory and deliberative democracy processes.

103. The adoption of participatory and deliberative methodologies needs adequate financial, technical and human resources. In addition, appropriate teaching curricula on democracy and human rights are needed to allow citizens to be fully aware of both their rights and duties in a democratic regime.

104. When considering the adoption of participatory and deliberative democracy mechanisms at all levels, policy makers need to take into account the lessons learned from previous experiences, in particular regarding the appropriate design of the process in terms of selection of the participants, inclusiveness, funding, timing, governance, transparency, publicity, evaluation and follow-up of the results produced. There is a growing number of useful available sources and databases in this regard.

105. The ultimate step would be to consider the institutionalisation of participatory and deliberative democracy processes, both at local and national level, to make the fourth branch of government a reality. This has already been done successfully in some countries at the local level.

106. Democracy as a governance system should be the epitome of positive change and innovation. The introduction of participatory and deliberative processes can strongly contribute to countering democratic backsliding.

56. <https://rm.coe.int/terms-of-reference-of-the-steering-committee-on-democracy-cddem-/1680ade019>.